

California, and private college and university campuses, where students and staff have the right to be safe and secure in their persons.

This too does not support the view that Defendant had a duty to educate Plaintiff on sexual harassment policies when he was in fourth grade in 1999-2000.

Defendants' demurrer to Plaintiffs' third cause of action for negligent failure to warn, train, or educate students is **SUSTAINED** with leave to amend.

Ruling on the Demurrer

The Court **SUSTAINS** Defendant's demurrer to the second cause of action for sexual harassment pursuant to Civil Code sections 51.9 and 52, and the third cause of action for negligent failure to warn, train, or educate students, with leave to amend. Plaintiffs may file and serve an amended complaint within 10 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

7. 9:00 AM CASE NUMBER: C25-01728

CASE NAME: JOHN DOE VS. JOSEPH MARTIN

***HEARING ON MOTION IN RE: STRIKE ALLEGATIONS IN PLAINTIFF'S COMPLAINT**

FILED BY: MOUNT DIABLO UNIFIED SCHOOL DISTRICT

TENTATIVE RULING:

Before the Court is a motion to strike filed by defendant Mount Diablo Unified School District ("Defendant"), which seeks to strike paragraphs 43, 50, 57, 65 of the complaint ("Complaint") filed by plaintiff John JB Doe ("Plaintiff").

For the reasons set forth below, Defendant's motion to strike paragraphs 43, 50, 57, and 65, of the Complaint is **GRANTED**, with leave to amend.

Meet and Confer

The meet and confer requirement has been satisfied. (Madison M. Simmons Decl., ¶¶ 2-3, Exhs. A & B; Code Civ. Proc., § 435.5, subd. (a)(3)(B).)

Background

Plaintiff filed the instant Complaint in this matter on June 16, 2025. The Complaint alleges four causes of action arising from the alleged sexual assault and harassment of Plaintiff, when he was a minor, by defendant Joseph Andrew Martin ("Martin"), who was Plaintiff's fourth grade teacher at Woodside Elementary School, within the area of Mount Diablo Unified School District. (Complaint, ¶¶ 1-34.) Plaintiff asserts claims against Defendant and Martin for: (1) negligent hiring, retention & supervision; (2) sexual harassment pursuant to Civil Code sections 51.9 and 52; (3) negligent failure to warn, train, or educate students; and (4) negligent supervision of a minor. (*Id.*, at ¶¶ 35-66.)

Legal Standard

The Court may strike allegations that are “irrelevant, false or improper matter” or any portion of a pleading “not drawn . . . in conformity with the laws of this state.” (Code Civ. Proc., § 436(a) and (b).) Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be based on a matter subject to judicial notice under Evidence Code §§ 452 and 453. (Code Civ. Proc., § 437(a) and (b).) “A motion to strike, like a demurrer, challenges the legal sufficiency of the complaint’s allegations, which are assumed to be true.” (*Blakemore v. Superior Court* (2005) 129 Cal.App.4th 36, 53 [citing *Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255].) It is in the Court’s discretion under Code of Civil Procedure section 436 whether to strike portions of the complaint. (Code Civ. Proc. § 436; *Clements v. T. R. Bechtel Co.* (1954) 43 Cal.2d 227, 242; *Colden v. Broadway State Bank* (1936) 11 Cal.App.2d 428, 429.)

Analysis

Paragraphs 43, 50, 57, 65 of the Complaint

Defendant argues that paragraphs 43, 50, 57, and 65, of the Complaint are improper and should be stricken. All the paragraphs make the same exact allegation:

Pursuant to Government Code §§ 815.2 and 820, Defendants MDUSD and DOES 1 through 100, and each of them, are vicariously liable for injuries to Plaintiff caused by the acts, omissions, and breach of the duty of care of their agents and employees, including but not limited to, Joseph Martin and the staff and administrators at the public school attended by Plaintiff. (*C.A. v. William S. Hart Union High School District* (2012) 53 Cal. 4th 861.)

(Complaint, ¶¶ 43, 40, 57, 65.)

Specifically, Defendant argues that these allegations are improper because they assert that Defendant is “vicariously liable” for the actions of defendant Joseph Martin, who Plaintiff alleges sexually abused him when he was in the fourth grade around 1999-2000. (Motion to Strike, p. 3.) Defendant points out that this theory is improper because it was explicitly rejected in *John R. v. Oakland Unified School Dist.* (1989) 48 Cal.3d 438, 452, which ruled that “the connection between the authority conferred on teachers to carry out their instructional duties and the abuse of that authority to indulge in personal, sexual misconduct is simply too attenuated to deem a sexual assault as falling within the range of risks allocable to a teacher’s employer. It is not a cost this particular enterprise should bear, and the consequences of imposing liability are unacceptable.”

Plaintiff argues that *C.A. v. William S. Hart Union High School District* (2012) 53 Cal. 4th 861, allows vicarious liability for the actions of the other school staff on the basis of their alleged non-sexual assault shortcomings, such as negligently hiring, retaining, and supervising defendant Martin. (Opposition, pp. 4-5.) Plaintiff states that the Complaint properly alleges vicarious liability under *Williams* because Plaintiff’s first cause of action alleges the failure of administrators to properly hire, train, and supervise employees like Martin. (*Ibid.*)

Plaintiff asserts that, “The reference to Mr. Martin identifies the employee whom MDUSD’s

administrators and other responsible personnel negligently hired, retained, and supervised. It does not seek to impose vicarious liability for Mr. Martin's sexual abuse itself." (*Id.*, at p. 5.)

On Reply, Defendant contests Plaintiff's view that the reference to Martin in paragraphs 43, 50, 57, and 65, of the Complaint is one that identifies him as the employee Defendant's administrators negligently hired, retained, and supervised. (Reply, pp. 2-3.)

The Court agrees that the reference to Martin in paragraphs 43, 50, 57, and 65 of the Complaint, alleges that Defendant is vicariously liable for Martin's conduct. This is clear from reading the allegations. "Defendants . . . are vicariously liable for injuries to Plaintiff caused by the acts, omissions, and breach of the duty of care of their agents and employees, including but not limited to, Joseph Martin. . . ." (Complaint, ¶¶ 43, 40, 57, 65.) As there is no vicarious liability to Defendant for the sexual misconduct allegations of Martin, due to *John R. v. Oakland Unified School Dist.* (1989) 48 Cal.3d 438, 452, these paragraphs contain an improper assertion.

Ruling

For the reasons discussed above, the Court **GRANTS** Defendant's motion to strike as to paragraphs 43, 50, 57, and 65 of the Complaint, with leave to amend. Plaintiff may file and serve an amended complaint within 10 days of notice of entry of this order.

8. 9:00 AM CASE NUMBER: C25-02103
CASE NAME: JESUS HUERTA VS. MT. DIABLO UNIFIED SCHOOL DISTRICT
***HEARING ON MOTION IN RE: ORDER TO APPOINT DECEASED PLTF'S SUCCESSOR IN INTEREST**
FILED BY: HUERTA, JESUS LEAL
TENTATIVE RULING:

Plaintiff Belkis Leal Hernandez ("Successor-in-Interest") filed a Motion for Order to Appoint Deceased Plaintiff's Successor in Interest to Continue Action on February 9, 2026 (the "Motion to Substitute"), seeking an order to continue this action as the successor-in-interest to decedent plaintiff Jesus Leal Huerta ("Decedent"). The Motion to Substitute was set for hearing on June 22, 2026. The motion was advanced for hearing to April 20, 2026 by the Court's Order entered March 25, 2026. The Motion to Substitute is unopposed.

Analysis

Code of Civil Procedure section 377.33 provides that "[t]he court in which an action is commenced or continued under this article may make any order concerning parties that is appropriate to ensure proper administration of justice in the case, including appointment of the decedent's successor in interest as a special administrator or guardian ad litem." See Code Civ. Proc. § 377.33.

Code of Civil Procedure section 377.31 provides that "[o]n motion after the death of a person who commenced an action or proceeding, **the court shall allow a pending action** or proceeding that does not abate **to be continued** by the decedent's personal representative or, if none, **by the decedent's successor in interest.**" See Code Civ. Proc. § 377.31 (emphasis added).

This requires the decedent's successor in interest to file a declaration containing certain affirmations. See Code Civ. Proc. § 377.32. Among other things, those affirmations include that the decedent is the